

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 25-26

Roger Waterloo d/b/a EcoBamboo, Complainant

v.

Ship4wd, Respondent

Date: November 24, 2025

Supplemental Submission Clarifying Responsibility Chain (Exhibits CX-14 to CX-16)

This Supplement is submitted following the recent status conference before the Administrative Law Judge (ALJ). During that conference, it became apparent that **the chain of responsibility underlying the shipment of container DFSU1191760 remained vague** in the record. In order to ensure clarity and audit-grade precision, Complainant now provides two confirmation letters and one email as exhibits, each annotated to explain the responsibility chain in full.

The purpose of this Supplement is to demonstrate, through documentary evidence, that Ship4wd was the primary contracting entity at the top of the responsibility chain, responsible for the shipping process including fumigation and phytosanitary procedures, that Multiverse Exim Pvt Ltd (Multiverse) acted under Ship4wd's authority, and that PT. Kemasindo Cepat Nusantara (KCN) acted under Multiverse's authority. Complainant was outside this chain and had no direct contractual engagement with either Multiverse or KCN, or direct communication at the time of booking and shipping process with both subcontractors of Ship4wd.

Chain of Responsibility

SHIP4WD → MULTIVERSE (*contracted by Ship4wd*) → KCN (*contracted by Multiverse*)

The [confirmation letters](#) establish that Multiverse, contracted by Ship4wd, engaged KCN to arrange fumigation and phytosanitary inspection procedures in Indonesia, and that Multiverse later confirmed coverage of detention, demurrage, and re-export obligations under the [CBP Emergency Action Notice of June 12, 2025](#). These exhibits therefore resolve any ambiguity regarding the responsibility chain and confirm that liability for fumigation and phytosanitary inspection procedures rested with Ship4wd, not with Complainant.

The wrongfully executed fumigation and phytosanitary inspection ([EV-AD](#), [CEV-17](#)) procedures fall under violations of the Shipping Act, specifically **46 U.S.C. § 41102(c), which prohibits**

carriers and intermediaries from engaging in unjust or unreasonable practices in connection with the handling of property, and fall under the responsibility of Ship4wd as the only contracting entity engaged by Complainant.

Additionally, by withholding CBP's directive of [June 18, 2025](#) that re-export was the only option, and by pursuing Complainant for costs tied to that directive while also withholding confirmation of [Multiverse's coverage](#) Ship4wd engaged in conduct that constitutes an unreasonable practice within the meaning of the Act.

In addition to the confirmation letters, Complainant submits an [email from Respondent's counsel dated November 24, 2025](#), which further reflects Ship4wd's awareness of the responsibility chain despite not being involved in the re-export process.

EXHIBIT CX-14 TO CX-16

Exhibit CX-14: Confirmation Letter from Multiverse Exim Pvt Ltd

Date: November 21, 2025

Regulation Reference: 46 U.S.C. § 41102(c) (Unreasonable Practices)

Tag: Responsibility Chain – Multiverse

Linked evidence: [CEV-31 – Multiverse Exim Pvt Ltd. confirmation letter](#)

Annotation:

Multiverse Exim Pvt Ltd's confirmation letter dated November 21, 2025 confirms that Multiverse was contracted by Ship4wd to handle export arrangements for container DFSU1191760. The letter clarifies the responsibility chain by stating that Multiverse engaged PT. Kemasindo Cepat Nusantara (KCN) to arrange export procedures in Indonesia under Multiverse's authority. It further confirms that Multiverse's first contact with Complainant was only on August 5, 2025, limited to confirming coverage of detention, demurrage, and all costs related to the mandated re-export order, as required under the [CBP Emergency Action Notice of June 12, 2025](#).

Ship4wd withheld from Complainant the fact that Multiverse had been contracted by Ship4wd, that Multiverse engaged KCN under its authority, and that Multiverse had already agreed to cover detention, demurrage, and re-export costs. Complainant had no direct contractual engagement with Multiverse and only learned of Multiverse's role on August 4, 2025 through KCN.

After CBP issued its June 12 and June 18 directives rejecting fumigation on U.S. soil, Ship4wd nevertheless pursued Complainant for those fumigation costs. On July 10, Ship4wd itself confirmed that the shipment could not enter the United States and had to be scheduled for re-export. On July 30, Ship4wd then sent an email insinuating that Complainant remained responsible for the re-export costs, even though Multiverse had already agreed to cover them.

This sequence proves the responsibility chain and confirms that Complainant had no knowledge of Multiverse's involvement. Multiverse could only have known about the CBP Emergency Action Notice if Ship4wd informed them, as there was no direct communication between Complainant and Multiverse at the time of booking or during the shipping process.

The record therefore reflects that Ship4wd pursued costs for remedies they knew were invalid under CBP directives, and withheld coverage information, raising issues that extend beyond unreasonable practices into possible misrepresentation. These communications reinforce the responsibility chain under Ship4wd's authority, as the confirmation letter of Multiverse confirms they are contracted by Ship4wd. The Complainant has already provided supporting evidence of these actions in the Complaint and Supplement.

Exhibit CX-15: Confirmation Letter from PT. Kemasindo Cepat Nusantara (KCN)

Date: November 21, 2025

Regulation Reference: 46 U.S.C. § 41102(c) (Unreasonable Practices)

Tag: Responsibility Chain – KCN

Linked evidence: [CEV-32 – KCN confirmation letter](#)

Annotation:

This letter, signed by Monica Halim (Director of PT. Kemasindo Cepat Nusantara), confirms that Complainant had no contractual engagement with KCN. It establishes that KCN was engaged solely by Multiverse Exim Pvt Ltd to arrange export procedures in Indonesia for container DFSU1191760, under Multiverse's authority. Specifically, Multiverse required KCN to arrange:

- **PT. Sinar Samudra Global** – undername company used for the Indonesian export license.
- **PT. Tiga Permata Selaras** – fumigation company engaged for treatment.
- **Ministry of Agriculture (Indonesian Agricultural Quarantine Agency)** – phytosanitary inspection.
- **Ocean freight transport** – shipment from Tanjung Priok, Jakarta Indonesia to Houston, Texas USA.
- **Translink Shipping Inc.** – NVOCC, Kemasindo's representative in the USA.

The letter further clarifies that KCN acted strictly under Multiverse's authority and only initiated direct contact with Complainant on August 4, 2025, after repeated attempts to resolve the mandated re-export with Ship4wd failed.

This evidence reinforces the responsibility chain: Ship4wd contracted Multiverse, Multiverse engaged KCN, and Complainant was outside the chain. Accordingly, liability for fumigation and phytosanitary inspection procedures rests with Ship4wd as the only contracting entity engaged by Complainant.

Exhibit CX-16: Email from Cozen O'Connor (Counsel for Ship4wd)

Date: November 24, 2025

Regulation Reference: 46 U.S.C. § 41102(c) (Unreasonable Practices)

Tag: Responsibility Chain – Ship4wd Knowledge

Linked evidence: [CEV-33 – November 24, 2025 email Cozen](#)

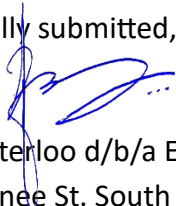
Annotation:

This email, sent by Wayne Rohde of Cozen O'Connor on behalf of Ship4wd, reports to the Federal Maritime Commission that the cargo left the United States on August 16, 2025, arrived in Jakarta on November 9, 2025, and was awaiting inspection by Indonesia's quarantine agency. As Ship4wd was not involved in the re-export, the communication itself reflects Ship4wd's awareness of the re-export chain.

Ship4wd withheld this information from Complainant and only provided it after the Judge directed Ship4wd to communicate. This conduct demonstrates concealment of material facts. The email therefore reinforces that Ship4wd had awareness of Multiverse's role in the re-export chain and the responsibility chain and supports the finding of unreasonable practices under 46 U.S.C. § 41102.

These exhibits are submitted to ensure the record reflects the responsibility chain with precision, confirming liability rests solely with Ship4wd.

Respectfully submitted,



Roger Waterloo d/b/a EcoBamboo, Complainant

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CERTIFICATE OF SERVICE

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 25-26

Roger Waterloo d/b/a EcoBamboo, Complainant

v.

Ship4wd, Respondent

Date: November 24, 2025

South Coffeyville, Oklahoma

I, **Roger Waterloo dba EcoBamboo**, hereby certify that on **November 24, 2025**, I caused a true and correct copy of the foregoing

Supplemental Submission Clarifying Responsibility Chain

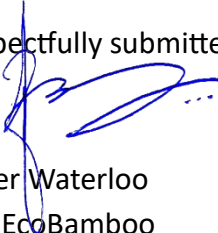
to be served upon Respondent **Ship4wd** and corresponding representative from the onset of the dispute, as follows:

Electronic mail

WRohde@cozen.com

The documents were transmitted in PDF format, with all exhibits hyperlinked and indexed for ease of navigation. A courtesy copy of the complete submission has been retained to maintain an identical reference set for audit integrity.

Respectfully submitted,



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